

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Case Assignment and Initial Scheduling Order

Entered April 9, 2025.

This civil action is assigned to the Honorable Elaine Mercer, United States District Judge. The Clerk shall use the caption and docket number shown above and provide electronic notice to counsel who have appeared. Nothing in this assignment order determines service, jurisdiction, the merits, or whether each defendant named in the original complaint will remain in the action.

Counsel shall confer under Rule 26(f), preserve evidence, and submit a focused discovery plan. The case arises from a recorded police encounter, so preservation extends to native body-camera media, dispatch audio and data, conducted-energy-device logs, photographs, force-review materials, medical records produced with lawful authorization, and associated metadata. Transcoded convenience copies do not replace source exports.

The parties shall promptly identify any claim or party changes. An amended pleading supersedes the initial complaint and must clearly state the capacities and theories retained. Routine discovery shall not be filed unless used in a motion, ordered, or required for record transmission.

Scheduling order — case deadlines

The Rule 26(f) report is due May 16, 2025. Initial disclosures are due June 6. Motions to amend pleadings or add parties are due May 30 unless good cause supports a later request. Fact discovery shall be completed by September 30, with witness examinations scheduled early enough to permit transcript review.

Ellison's expert disclosures are due October 24. Any technical supplemental report within her allocated subjects is due October 30. Rusk's responsive expert disclosure is due November 5. Expert depositions may continue through November 14 without reopening completed fact discovery.

Dispositive motions are due November 21, responses December 12, and replies December 23. The Court may direct a joint media or record-citation chart to clarify disputed interpretations. A hearing will be set only if useful after briefing. A jury trial is provisionally reserved for March 2026, subject to the resolution of immunity and other pretrial issues.

These dates reflect the anticipated record and do not predetermine a motion's contents. Extensions require good cause and a concrete explanation of the remaining task. Agreement of counsel alone does not modify a court deadline.

Scheduling order — recorded-media protocol

The parties shall retain each native export in read-only form and exchange a manifest containing source identifier, file name, byte size, hash, export date, and available clock metadata. Any common-event alignment must preserve the original timestamps and document the transformation used to compare streams.

Ordinary viewing adjustments, clips, stills, and slowed playback may be used as demonstratives if clearly labeled. They do not become substitute source evidence. No party may represent generated pixels, interpolated poses, synthetic audio, or an artificial reconstruction as a captured event. If a view is obstructed, the limitation must remain apparent in any excerpt offered to the Court.

The parties may stipulate to authenticity without conceding that a camera captures every relevant movement or that a transcript resolves disputed conduct. Objections to completeness, annotation, hearsay purpose, expert scope, and argumentative captions remain available. A joint chart should separate visible events, audible words, witness attribution, and competing inference.

Protective treatment, if needed for private medical or personal information, must be requested by targeted motion. No sealed item is created merely because discovery contains sensitive material.

Scheduling order — immunity and record management

Any qualified-immunity motion shall distinguish the officer's asserted historical account from the nonmovant's supported version. The parties should brief whether the assumed facts establish a constitutional violation and whether the right was clearly established at the incident date. A video argument must identify exactly what the recording shows and any interval where it does not.

If the Court finds a factual dispute, its ruling may state the disputed questions separately from the legal analysis conducted on assumed facts. Such an assumption is not a trial finding. The parties shall avoid proposed orders that merge evidence sufficiency with the ultimate historical answer.

The Clerk shall maintain a complete docket of pleadings, designated discovery materials, motion papers, orders, notice of any interlocutory appeal, and record-transmission entries. An order denying summary judgment does not create a final judgment merely because immunity is asserted. Any appellate notice or transcript designation must identify the order actually challenged and must not imply that unresolved merits claims were finally adjudicated.

SO ORDERED on April 9, 2025.

Elaine Mercer, United States District Judge